

HOUSE No. 4112

The Commonwealth of Massachusetts

PRESENTED BY:

Kate Hogan

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to firefighting water supplies and a state cistern program.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Kate Hogan</i>	<i>3rd Middlesex</i>	<i>1/16/2025</i>

HOUSE No. 4112

By Representative Hogan of Stow, a petition (accompanied by bill, House, No. 4112) of Kate Hogan that a fee on homeowners insurance policies be used to fund firefighting water supplies and a state cistern program. Financial Services.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to firefighting water supplies and a state cistern program.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Chapter 148 of the General Laws, as appearing in the 2022 Official Edition,
2 is hereby amended by adding the following section:-

3 Section 61. There shall be a separate fund on the books of the commonwealth to be
4 known as the Fire Suppression Water Resource Fund. The fund shall consist of all monies
5 recovered as fees under section 4H of chapter 175 and any monies appropriated to the fund by
6 the general court. Such monies shall be deposited to the credit of the fund and shall, in addition
7 to any other monies made available for such purpose, be expended by the state fire marshal,
8 without further appropriation, for fire safety and prevention programs including for the purchase
9 and installation of firefighting water cisterns in the commonwealth's rural and urban interface
10 regions with restricted access to water. All payments from such fund shall be made on the audit
11 and warrant of the state treasurer on vouchers certified and submitted by the secretary.

SECTION 2. Chapter 175 of the General Laws is hereby amended by inserting after section 4G the following section:-

Section 4H. (a) There shall be a \$2 fee on each homeowner's insurance policy issued or renewed by any insurer authorized to issue such policies within the commonwealth.

(b) The fee shall be collected annually by the insurer at the time of issuance or renewal and shall be remitted quarterly to the commissioner, who shall deposit such funds into the Fire Suppression Water Resource Safety Fund established in section 61 of chapter 148.

SECTION 3. (a) There shall be a special commission established to conduct a comprehensive study on the most effective and efficient means of implementing a cistern program across the commonwealth. The commission shall seek to investigate the costs and feasibility of creating a statewide system of water storage cisterns for the storage of water at the interface of rural and urban communities for use by the fire service in combating fire where water resources are limited.

(b) The commission shall consist of 6 members that shall include: (i) the state fire marshal or their designee, who shall serve as chair; (ii) the director of the Massachusetts emergency management agency or their designee; (iii) the commissioner of the department of environmental protection or their designee; (iv) the commissioner of the division of occupational licensure or their designee; (v) the chief fire warden of the department of conservation and recreation; and (vi) a representative from the Fire Chiefs' Association of Massachusetts.

(c) The study shall include, but not be limited to: (i) input and recommendations from the appropriate municipal representatives from communities with documented water access challenges; (ii) evaluating the optimal placement of cisterns based on fire risk and water access;

(iii) ensuring that any cistern deployment strategy is based on data-driven decision-making and informed by industry best practices; and (iv) the cost to construct 10 cisterns per year and the costs for the construction, installation and maintenance of water storage cisterns at the interface of rural and urban communities throughout the commonwealth.

(d) The commission shall prepare a report on its activities and on any findings and recommendations for a statewide firefighting cistern strategy including, but not limited to: (i) identifying priority areas for installation; (ii) potential funding sources; and (iii) regulatory or legislative changes needed to facilitate implementation. The report shall be submitted to the: (i) secretary of the executive office of public safety and security; (ii) joint committee on public safety and homeland security; and (iii) offices of the house and senate clerk not later than January 1, 2027.